SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DR. PETER DASZAK, PH.D.,

Plaintiff,

-against-

ECOHEALTH ALLIANCE INC., STEVEN SHAPIRO, INDIVIDUALLY AND AS CHAIRMAN OF THE BOARD OF DIRECTORS OF ECOHEALTH ALLIANCE, INC., AND JULIET AGRANOFF, DR. FREDERICK BAUM III, JOE CURRY, KAREN DENTON, RALPH E. GOMORY, NANCYE GREEN, NANCY GRIFFIN, ROBERT HOGUET, CHARLES HIRSCHLER, GEOFFREY POTTER, ELLEN SHEDLARZ, LISA SILVERSHEIN, JARRET STEPHENS, PAMELA M. THYE, CARLOTA VOLLHARDT, STEVEN WILS, AND DR. LILIAN WU,

Defendants.

Index No.: 164611/2025

MEMORANDUM OF LAW IN SUPPORT OF DEFENDANTS' MOTION TO DISMISS

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PRELIMINARY STATEMENT

Defendants EcoHealth Alliance Inc. ("EHA"), Stephen Shaprio[1], Juliet Agranoff, Dr. Frederick Baum III, Joe Curry, Karen Denton, Ralph E. Gomory, Nancye Green, Nancy Griffin, Robert Hoguet, Charles Hirschler, Geoffrey Potter, Ellen Shedlarz, Lisa Silvershein, Jarret Stephens, Pamela M. Thye, Carlota Vollhardt, Steven Wils, and Dr. Lillian Wu (collectively "Defendants"), respectfully submits this Memorandum of Law in Support of Defendants' Motion to Dismiss the Verified Complaint ("Complaint" or "Cp.") filed by Plaintiff Peter Daszak ("Plaintiff") pursuant to Rules 3211(a)(7) and 3211(a)(11) of the New York Civil Practice Law and Rules ("CPLR") and the New York Not-For-Profit Corporation Law § 720-a ("NY N-PCL").

Plaintiff, a former at-will employee of EHA, asserts claims against Defendants for breach of contract under New York common law and age discrimination under the New York State Human Rights Law ("NYSHRL") and New York City Human Rights Law ("NYCHRL"). As set forth in detail below, these claims should be dismissed with prejudice.

First, Plaintiff's breach of contract should be dismissed because he fails to plead that any contract exists and does not attach any purportedly relevant contract to the Complaint. Indeed, the four corners of the Complaint (inclusive of the four attending exhibits) establish that no such employment contract with Plaintiff exists.

Second, Plaintiff also fails to plead any facts sufficient to establish a prima facie case of discrimination. Instead, he only states that his age upon termination was 59 years old, while also admitting that "other terminated employees were younger" than Plaintiff. (Cp. ¶¶ 56, 62). Plaintiff also fails to plead any facts related to the individual Defendants' involvement in any

[1] The Complaint incorrectly names Defendant Shapiro as "Steven Shapiro."

alleged discriminatory act. Rather, Plaintiff merely recites their names and positions on EHA's Board of Directors. (Cp. ¶¶ 9-27).

Third and finally, it is undisputed that the individual defendants are voluntary, uncompensated directors and, therefore, are immune from suit and liability pursuant to all applicable not-for-profit laws.

Accordingly, Defendants respectfully request the Court dismiss Plaintiff's Verified Complaint with prejudice.

STATEMENT OF FACTS[2]

A. Plaintiff's Employment at EHA.

EHA, a not-for-profit corporation incorporated under the laws of the Commonwealth of Massachusetts, conducted scientific studies on the transmission of zoonotic diseases between non-humans (e.g., bats and insects) and humans. (Cp. ¶¶ 8, 28). EHA's studies were funded by highly-regulated federal grants from the United States government. (Cp. ¶ 30). EHA is overseen by a voluntary Board of Directors, which can range between 3 and 35 Directors. (Cp. Ex. 2, Section 5). The President of EHA is elected by a majority vote of the Board. (Cp. Ex. 2, Section 18(b)).

Plaintiff alleges that he resides in New York and was employed by EHA for 24 years as a scientist, President, and Chief Executive Officer ("CEO"). (Cp. ¶¶ 1, 3, 6). Plaintiff alleges that, in this capacity, he was responsible for "manag[ing] the scientific efforts of EHA and its staff…garnering on EHA's behalf millions of dollars of grants from [the Government] which funded EHA's efforts…[and] supervised international efforts to discover the origin of zoonotic

[2] The Statement of Facts is derived from the material allegations of the Verified Complaint, which are assumed to be true solely for the purpose of this motion, and Defendants reserve their rights to dispute these factual allegations and claims as this matter proceeds.

diseases." (Cp. ¶ 1). EHA's Bylaws also state that the President and CEO is "responsible for the execution and administration of the operations of the corporation including the implementation of policies and programs approved by the board of directors." (Cp. Ex. 2, Section 23). The President is also expected to "act[] as an agent of the board of directors in the employment and release of staff according to the policies and procedures established by the board of directors." (Cp. Ex. 2, Section 23).

B. The 2014-2019 Grant and the 2019-2020 Coronavirus Outbreak.

Plaintiff alleges that, on or around May 27, 2014, the United States federal government (the "Government") awarded EHA a grant "in the form of NIH/NIAID [National Institute of Health and National Institute of Allergy and Infectious Diseases]" for the time period between 2014 and 2019 (the "Grant"). (Cp. ¶ 33). The Grant funded research and experiments conducted by EHA and the Wuhan Institute of Virology ("WIV") in Wuhan, China related to the potential transmission of coronaviruses from bats to humans. (Cp. ¶ 33). Plaintiff served as the Principal Investigator ("PI") and Program Director ("PD") for the 2014 Grant. (Cp. ¶ 37).

C. The Government's Investigation and Plaintiff's Involvement.

As a result of the Covid-19 outbreak, the Government commenced an investigation into the Grant in April of 2020, which "targeted both EHA and [Plaintiff]" as well as WIV. (Cp. ¶37). This investigation threatened EHA's funding and reputation; about 80% of EHA's annual revenue came from federal grants from the Government. (Cp. ¶¶ 40-42).

Indeed, the U.S. Congress "pored over 425,00 pages of documents" and "conducted more than 100 hours of closed-door interviews." See Exhibit "A" attached to the March 26, 2026 Attorney Affirmation of Joseph Anci ("Anci Aff.") containing the House of Representatives' Committee on Oversight and Accountability, Select Subcommittee on the Coronavirus Pandemic,

"A Hearing With the President of EcoHealth Alliance Dr. Peter Daszak (May 1, 2024)", pp. 2-3[3]. Congress found that Plaintiff, in his capacity as President and CEO of EHA:

i) "intentionally downplayed the role of China" in research grant proposals" to federal oversight agencies, including the Defense Advanced Research Projects Agency ("DARPA") (Anci Aff. Ex. A, 12; 19-20);

ii) applied Chinese biosafety standards instead of U.S. standards (Anci Aff. Ex. A, p. 12);

iii) failed to declare a competing interest by intentionally withholding his partnership with WIV and Plaintiff's "subsidiary work at Wuhan" (Anci Aff. Ex. A, pp. 14-6);

iv) intentionally misrepresented data, falsified information in mandatory progress reports, and about potential public impact (Anci Aff. Ex. A, pp. 20-2, 43, 59-60);

v) inappropriately conducted gain-of-function research, which modifies "a virus to make it more infectious among humans" and dishonestly testified as to this unapproved research (Anci Aff. Ex. A, p. 25, 30, 59-60);

vi) did not effectively monitor awards and sub-awards and was an irresponsible steward of American taxpayer money (Anci Aff. Ex. A, pp. 31, 40);

vii) inappropriately corresponded with colleagues about work-related matters through personal email accounts in an effort to avoid FOIA obligations (Anci Aff. Ex. A, p. 46);

[3] As discussed more on p. 7, below, Plaintiff specifically mentions Congressional Hearings and the debarment of both Plaintiff and EHA numerous times in his Complaint. See Cp. ¶¶ 1, 28, 37, 40-42, and 46. See also Exhibits A-D to the Anci Aff.

viii) failed to comply with federal grant regulations (Anci Aff. Ex. A, p. 49-50), and

ix) eluded questions and discussed his work with regulators, Congress, and public-facing situations in ways that were less accurate and more favorable to Plaintiff in an attempt to avoid consequences (Anci Aff. Ex. A, p. 67).

D. The Government Suspends and Ultimately Debars Plaintiff.

After Plaintiff's May 1, 2024 hearing (detailed above), the Government issued "An Evaluation of the Evidence Surrounding EcoHealth Alliance, Inc.'s Research Activities" detailing its five (5) factual findings. See Anci Aff, Exhibit "B". Specifically, the Government found: 1) EHA submitted its Year Research Performance Progress Report ("RPPR") almost two years late and Plaintiff's claim that the reason was due to being locked out of the system were not supported by evidence (Anci Aff. Ex. B, pp. 5-12); 2) EHA and Plaintiff violated the Grant's terms and conditions by failing to report potentially dangerous experiment(s) conducted by WIV (Anci Aff. Ex. B, pp. 13-6); 3) EHA and Plaintiff used taxpayer dollars to facilitate unapproved gain-of-function research on coronaviruses in Wuhan, China at WIV, contrary to previous public statements (Anci Aff. Ex. B, pp. 17-32); 4) NIH did not know about EHA and Plaintiff's actions sufficient to intervene as necessary and compliance actions taken were appropriate, including termination of the Grant (Anci Aff. Ex. B, pp. 33-45); and 5) while negotiating for reinstatement of the Grant, Plaintiff "omitted the material fact that unanalyzed samples and sequences—that the U.S. paid for—are in the custody and control of the WIV" which violated the terms of the Grant and NIH's debarment of WIV (Anci Aff. Ex. B, pp. 46-53).

On May 15, 2024, the Government further published a Notice of Suspension and Proposed Debarment Notice and Action Referral Memorandum ("ARM") suspending Plaintiff and

EHA and proposed debarment due to Plaintiff's questionable actions. See Anci Aff, Exhibit "C" for the true and accurate contents thereof. The factual background as alleged in Plaintiff's Complaint confirms these were the Government's findings. (Cp. ¶¶ 30-8).

During this suspension, EHA could not receive any federal funds, and its staff were not allowed to perform any scientific work. In January 2025, the Government ultimately debarred not only Plaintiff individually (a highly unusual step) but also EHA, the organization he ran, from receiving federal grants for the next 5 years based largely if not exclusively on Plaintiff's actions. See Cp. ¶¶ 45, 46; Anci Aff. Ex. A, p. 67 (wherein the Government noted at Plaintiff's May 2024 hearing that "it is important that you and your organization be held accountable for all of your actions…"); and Anci Aff. Ex. C, pp. 6, 11 (wherein the Government states that "…in his role as PD/PI of [the Grant], [Plaintiff] was ultimately responsible for ensuring [compliance] with all grant requirements and federal regulations."). The debarment destroyed EHA's ability to pursue its mission, as its annual revenue was comprised of approximately 80% of such federal grants. (Cp. ¶¶ 40-42).

As a result of this loss of funding, EHA avers that it was unable to continue its work, as determined by unanimous vote of its Board of Directors, and was thus forced to begin a dissolution process. Plaintiff concedes that he laid-off multiple employees during the Government's multi-year investigation (Cp. ¶¶ 46-7, Section C, noting Plaintiff terminated "nearly all" of EHA employees "[d]uring the Government's Investigation…"). As set forth in the documents annexed to the Complaint, employment terminations are one of the explicit responsibilities of the President. (Cp. Ex. 2, Section 23).

Throughout the Government's lengthy investigation, containing multiple hearings and reports of findings, EHA lost confidence in Plaintiff's leadership and ability to lead the

organization pursuant to its principles and legal obligations. See Point "C," above. See also Anci Aff., Exs. A-C. Worse, EHA could not continue to employ a President and CEO who would flagrantly flout federal reporting obligations and obfuscate testimony during the Government's investigation. Thus, Plaintiff's employment was terminated on January 6, 2025. (Cp. ¶¶46-9).

STANDARD OF REVIEW

Rules 3211 (a)(7) and (a)(11) of the CPLR provide for the dismissal of Plaintiff's claims. Pursuant to CPLR 3211(a)(7) dismissal is appropriate where the pleading fails to state a cause of action. See CPLR 3211(a)(7). "Upon a motion to dismiss for failure to state a cause of action under CPLR § 3211(a)(7), the court must determine whether, from the four corners of the pleading, factual allegations are discerned which taken together manifest any cause of action cognizable at law." Salvatore v. Kumar, 45 A.D.3d 560, 562–63 (2d Dep't 2007). See also Russell v. New York Univ., 204 A.D.3d 577, 587 (1st Dep't 2022).

The legal standard to be applied in evaluating a motion to dismiss is whether "the pleading states a cause of action, not whether the proponent of the pleading has a cause of action." Marist Coll. v. Chazen Envtl. Servs., 84 A.D.3d 1181, 1182 (2d Dep't 2011). Further, it is well-settled that a simple recitation of legal conclusions is insufficient, as all claims must be supported by factual allegations. See Belfar v. N.Y. Gracie Sq. Hosp., Inc., No. 109829/2010, 2011 N.Y. Misc. LEXIS 2112, at *4–5 (Sup. Ct. N.Y. Cnty. Apr. 13, 2011). In fact, "[a]llegations consisting of bare legal conclusions … are not presumed to be true [or] accorded every favorable inference" on a motion to dismiss. 392 CPW, LLC v. Maxwell Kates, Inc., No. 110694/2010, 2011 N.Y. Misc. LEXIS 1689, at *11–12 (Sup. Ct. N.Y. Cnty. Apr. 11, 2011); Godfrey v. Spano, 13 N.Y.3d 358, 373 (2009) ("conclusory allegations – claims consisting of bare legal conclusions with no factual specificity – are insufficient to survive a motion to dismiss"); Cozzani v. County of Suffolk,

84 A.D.3d 1147, 1147 (2d Dep't 2011) (motion to dismiss properly granted where the Complaint alleged legal conclusions without any factual support).

To withstand dismissal, the Complaint must also "contain statements of sufficient particularity to give the court and the parties notice of the transactions and occurrences intended to be proved, along with the material elements of each cause of action." Sullivan v. Keyspan Corp., No. 36398/2012, 2014 N.Y. Misc. LEXIS 3673, at *178–79 (Sup. Ct. Suffolk Cnty. Aug. 7, 2014), *quoting* Melito v. Interboro-Mut. Indem. Ins. Co., 73 A.D.2d 819, 820 (4th Dep't 1979). The Complaint must "give the defendant fair notice of what the . . . claim is and the grounds upon which it rests." Erickson v. Pardus, 551 U.S. 89, 93 (2007). A motion to dismiss is properly granted where the Complaint alleges legal conclusions without any factual support. See CPLR 3103; see also Cozzani, 84 A.D.3d at 1147.

Additionally, "[i]n assessing the legal sufficiency of a claim, the Court may consider those facts alleged in the complaint, documents attached as an exhibit therefor or incorporated by reference ... and documents that are integral to the plaintiff's claims, even if not explicitly incorporated by reference." Dragonetti Bros. Landscaping Nursery & Florist v. Verizon N.Y., Inc., No. 654342/2020, 2021 N.Y. Misc. LEXIS 2072, at *6 (Sup. Ct. N.Y. Cnty. Apr. 28, 2021) (internal quotation marks and citation omitted), *aff'd*, 208 A.D.3d 1125 (1st Dep't 2022). Plaintiff references Congressional Hearings and the debarment decision of both Plaintiff and EHA numerous times in his Complaint. (Cp. ¶¶ 1, 28, 37, 40-42, and 46; see also Anci Aff. Exs. A-D to the Anci Aff). The Court may therefore properly consider the Congressional records and the Government's determinations given their public nature and Plaintiff's references thereto in the Complaint.

As detailed more fully below, Plaintiff's Complaint relies on vague, conclusory

assertions that are not entitled to the favorable inferences typically afforded on a motion to dismiss. Plaintiff simply fails to adequately plead a cause of action for either age discrimination or breach of contract. Even if accepted as true solely for purposes of this motion, the few paltry allegations plead still utterly fail to state a claim justifying dismissal with prejudice.

ARGUMENT

POINT I

PLAINTIFF'S BREACH OF CONTRACT CLAIMS MUST BE DISMISSED

As an initial matter, Plaintiff's breach of contract claim should be dismissed because he fails to plead the existence of a valid and enforceable employment contract. Plaintiff's breach of contract claim is based on the conclusory allegation that "[Plaintiff] and the defendant EHA entered into a contract." (Cp. ¶ 73). Plaintiff then proceeds to state the terms of his at-will employment without pointing to any discreet employment agreement that he entered into with any Defendant. (Cp. ¶ 74; Cp. Ex. 2, Section 18(b)).

Plaintiff cannot establish the existence of a contract because he was an at-will employee and no such contract existed. To state a claim for breach of contract in New York, a claimant must allege facts demonstrating: 1) the existence of a contract; 2) the claimant's own performance under the contract; 3) the defendant's breach of its contractual obligations; and 4) damages resulting from the defendant's breach. See Alloy Advisory v. 503 W. 33rd St. Assoc., 195 A.D.3d 436, 436 (1st Dep't 2021); JTS Trading Ltd. v. Trinity White City Ventures, Ltd., No. 651936/2015, 2017 N.Y. Misc. LEXIS 1423, at *6 (Sup. Ct. N.Y. Cnty. Apr. 17, 2017).

A. EHA's Bylaws Are Not An Employment Contract.

Plaintiff did not have an individual employment agreement, and no such agreement is annexed to the Complaint. This alone warrants dismissal of Plaintiff's breach claim. See Valley Cadillac Corp. v. Dick, 238 A.D.2d 894 (4th Dep't 1997) (in order to survive a motion to dismiss

for breach of contract, the Complaint must set forth the terms of the agreement upon which liability is predicated, either by express reference or by attaching a copy of the contract.).

The only document that Plaintiff attaches in apparent support of his claim that an employment contract existed is the EHA Bylaws attached to the Complaint as Exhibit 2 (the "Bylaws"). (Cp. Ex. 2). However, the attached EHA Bylaws clearly state that its President "shall have such tenure, compensation and other rights and obligations ***as set forth in his or her contract of employment, if any, or in the absence of a contract*** as the board may specify and as communicated to the president by the chairman of the board." (Cp. Ex. 2, Section 18(b)) (emphasis added).

Thus, the Bylaws clearly contemplate either the existence of a separate employment contract with EHA's President, or, absent such a contract as here, specifically provide that the board itself shall specify the terms of employment. In either case, the language of EHA's Bylaws clearly establishes that the Bylaws themselves are not an employment contract with its President. Accordingly, Plaintiff's breach of contract claim must fail. See Brock v. Prime, No. 100841/2020, 2022 N.Y. Misc. LEXIS 42942, at *13 (Sup. Ct. N.Y. Cnty. Sept. 22, 2022) ("A breach of contract cause of action cannot be maintained where, as here, there is no contract between the parties."), *citing* Landmark Ventures, Inc. v. InSightec, Ltd., 179 A.D. 3d 493, 494 (1st Dep't 2020) (the document at issue was not a contract pursuant to which defendant had any obligations to plaintiff).

B. Employee Handbooks Are Not Contracts.

In apparent support of his breach of contract claim, Plaintiff also states that "[t]he Board assigned [Plaintiff] and those under his supervision to maintain and distribute an employee handbook." (Cp. ¶75). Plaintiff similarly cannot establish a breach of contract claim based on an employee handbook because it is not a contract. A contract claim is not viable for at-will employees unless specific language within an employment agreement restricts the employer's right

to discharge the employee. Here, the employee handbook clearly states (in a July 2024 letter signed by Plaintiff) that "[t]he EcoHealth Alliance Employee Handbook is not a contract of employment nor is it intended to create contractual obligations of any kind." See Exhibit "D" to the Anci Affirmation containing the relevant portions of EHA's Employee Handbook, p. 3. Thus, Plaintiff was an at-will employee as the language required to establish a legally binding employment contract is absent here. See Lui v. Chinese-Am. Planning Council, Inc., 300 A.D. 2d 80, 80 (1st Dep't 2002) (affirming dismissal of breach of contract claim because the at-will employee did not allege the existence of "any express written policy limiting its right of discharge"), *citing* Matter of De Petris v. Union Settlement Assn., 86 N.Y.2d 406, 410 (1995); Hickey v. Peninsula Hosp. Ctr., 135 A.D.2d 781, 782 (2d Dep't 1987) (dismissing contract claim where employment policies and manual contained provisions that were, "at best, general policy statements and supervisory guidelines."); Lobosco v. N.Y. Tel. Co. /NYNEX, 96 N.Y.2d 312, 317 (2001) (affirming the dismissal of Plaintiff's contract claims, holding that "[r]outinely issued employee manuals, handbooks and policy statements should not lightly be converted into binding employment agreements…").

POINT II

PLAINTIFF'S CLAIMS OF AGE DISCRIMINATION UNDER THE NYSHRL AND NYCHRL MUST BE DISMISSED

To state a prima facie claim for discrimination under the NYSHRL and NYCHRL[4], Plaintiff must allege that he: (1) is a member of a protected class; (2) was qualified to hold the position; (3) was treated differently or less well than other employees; and (4) the surrounding facts support an inference of discrimination. Shibley v. City of New York, No. 100220/2025, 2026

[4] In 2019, the New York State Human Rights Law was amended to be co-extensive with the New York City Human Rights Law. Brown v. N.Y. City Dep't of Educ., 2023 N.Y.L.J. LEXIS 144, at *12–14 (Sup. Ct. N.Y. Cnty. Jan. 12, 2023).

N.Y. Misc. LEXIS 69 (Sup. Ct. N.Y. Cnty. Jan. 12, 2026); Brown v. N.Y. City Dep't of Educ., 2023 N.Y.L.J. LEXIS 144, at *28 (Sup. Ct. N.Y. Cnty. Jan. 12, 2023). NYSHRL and NYCHRL claims are reviewed under notice pleading standards and must give "fair notice of the nature of the plaintiff's claims and their grounds." Shibley, 2026 N.Y. Misc. LEXIS 69, at *7. Such claims "must be liberally construed to accomplish the remedial purposes that they serve." Id. However, even under the more liberal construction, a plaintiff must still "[make] s a showing that the challenged action was motivated by discriminatory animus." Id. at *13.

A. Plaintiff Fails to Plead Any Facts Establishing Causal Connection to Age.

At a minimum, Plaintiff must clearly plead that any Defendant acted, at least in part, because of Plaintiff's age. Here, Plaintiff simply has not done so. Instead, Plaintiff admits that: i) the Government debarred Plaintiff and EHA in late January 2024 (Cp. ¶ 46); ii) Plaintiff and EHA were both barred from "receiving any Government grants for a period of five years" (Cp. ¶ 46); iii) this debarment had "devastating financial consequences" because "approximately 80% of EHA's annual revenues" came from Government grants (Cp. ¶¶ 39-40); and, in fact, iv) "[t]he other terminated employees were younger and less qualified" than Plaintiff (Cp. ¶ 61).

Accordingly, the plain language in the four corners of the Complaint confirms that Plaintiff himself, as EHA's President and CEO, terminated the majority of its employees—most of whom were younger than Plaintiff—due to (i) the Government's suspension of EHA in May of 2024, which effectively put EHA out of business, and then (ii) the ultimate debarment in January of 2025—the latter of which forced EHA to undertake a process of dissolution. Plaintiff does not offer any other factual bases for other EHA employee terminations, much less any that relate to any employee's age. Plaintiff simply cannot establish that his employment termination was in any way related to his age. See Lent v. City of N.Y., No. 150403/2020, 2021 N.Y.L.J. LEXIS 668, at *13 (Sup. Ct. N.Y. Cnty. May 19, 2021) (dismissing NYSHRL and NYCHRL age discrimination

claims where "plaintiff has failed to allege any facts from which a reasonable inference could be drawn that [the complained of action was] because of age discrimination.").

To the extent Plaintiff attempts to show "less well treatment" because other employees received 2 weeks of severance per year of service (Cp. ¶¶ 1; 60; 74(B)(ii)), such claims must fail because Plaintiff fails to plead that these employees were similarly situated to him. (i.e., any younger employees who were (i) in a similar position or role to Plaintiff, (ii) also personally investigated and suspended by the Government, and (iii) who nonetheless received severance). See Thomas v. Mintz, 182 A.D.3d 490, 490–91 (1st Dep't 2020) (dismissing age discrimination claims where a plaintiff failed to allege facts that would establish that similarly situated persons who were outside of plaintiff's protected class were treated more favorably than Plaintiff). Plaintiff simply fails to establish the existence of a similarly-situated comparator.

Furthermore, EHA's employee handbook—which Plaintiff himself created (Cp. ¶¶ 75-6)—makes it clear that severance will only be offered if an employee "is laid off for non-performance-related reasons (e.g., due to a restructuring or loss of funding)…" See Anci Aff. Ex. D, Section 25.7 (emphasis added).

Instead, Plaintiff admits: i) that he was the President and CEO of EHA (Cp. ¶ 3); ii) the Government "targeted both EHA and [Plaintiff]" by commencing an investigation into the 2014 Grant (Cp. ¶ 37); iii) in "late January 2024, the Government barred both EHA and [Plaintiff] from receiving any government grants for a period of five years" (Cp. ¶ 46); iv) and that the Board removed Plaintiff for cause on January 6, 2025 (Cp. ¶ 49). While Plaintiff admits that over 60 employees were terminated as well (Cp¶ 47; Cp. Ex. 3) (conveniently forgetting that it was he who dismissed them), he does not allege that any other employee was both of his seniority and were also subject to a Government investigation, suspension, and ultimate debarment. See Fitzgerald

v. We Work Mgt., LLC, No. 153618/2022, 2023 N.Y. Misc. LEXIS 2400, at *11 (Sup. Ct. N.Y. Cnty. May 15, 2023) (dismissing NYCHRL claims when plaintiff's employment terminated as part of RIF and when there were no similarly situated comparators given discrepancies in seniority and job criteria).

Simply repeating conclusory legal arguments in a Complaint does not convert them into factual allegations simply because they are stated over and over. See Askin v. Dep't of Educ. of the City of N.Y., 110 A.D.3d 621, 622 (1st Dep't 2013) (dismissing NYSHRL and NYCHRL claims based on conclusory allegations plaintiff was 54 years old and treated adversely, and defendants were motivated by age-related bias, finding such allegations "amount to mere legal conclusions, and do not suffice."). Even under the most liberal reading of the NYSHRL and NYCHRL, and affording the Complaint every benefit of the doubt, these conclusory allegations cannot sustain a cause of action.

Under these circumstances, Plaintiff's Complaint wholly fails to state a claim of age discrimination or age-based harassment under the NYSHRL or NYCHRL, and these claims must be dismissed.

B. Plaintiff Fails to Establish Individual Liability.

Even if Plaintiff could establish liability against Defendant EHA, he has wholly failed to plead any facts sufficient to establish individual liability as to any Board Member. Plaintiff does not point to any alleged invidious comment by any individual Defendant supporting an inference of discriminatory intent or animus. Nor does Plaintiff allege any facts supporting any individual Defendant treated him less well than similarly situated colleagues due to his age. As such, dismissal as to the individuals is appropriate. See Appleton v. City of New York, No. 157849/2017, 2019 N.Y. Misc. LEXIS 1051, at *21–28 (Sup. Ct. N.Y. Cnty. Mar. 13, 2019) (dismissing NYSHRL and NYCHRL age discrimination claims as to individual defendants when

"plaintiff has not alleged that defendants made any explicitly or implicitly invidious comments regarding her race or age" or "any connection between her treatment by defendants and her age…"); Idehen v. Teachers Coll. Columbia Univ., No. 652469/2013, 2014 N.Y. Misc. LEXIS 4962, at *18–19 (Sup. Ct. N.Y. Cnty. Oct. 28, 2014) (dismissing NYCHRL claims against individual defendants when a plaintiff failed to establish such claims as to the entity).

POINT III

INDIVIDUAL DEFENDANTS ARE IMMUNE FROM LIABILITY

Pursuant to CPLR 3211(a)(11), dismissal is appropriate where "the party is immune from liability." See CPLR 3211(a)(11). CPLR 3211(a)(11) further identifies New York Not-For-Profit Corp. Law §720-a,[5] among others, as one potential basis for such dismissal. NY N-PCL § 720-a states: "***no person serving without Compensation as a director, officer, key person or trustee of a corporation***, association, organization or trust described in section 501(c)(3) of the United States internal revenue code ***shall be liable to any person*** ..." See NY N-PCL § 720-a (emphasis added). This immunity means unpaid directors are immune from a lawsuit as well. See Johnson v. Black Equity Alliance, Inc., 26 Misc. 3d 1219(A) (Sup. Ct. N.Y. Cnty. Jan. 21, 2010) ("Unpaid directors are immune from suit under the New York Not-For-Profit Corporation Law (N-PCL) § 720-a and CPLR 3211 (a) (11)..."). Although Plaintiff chose to file in New York state court, notably the same immunity from both lawsuits and liability applies under both federal law and Massachusetts law, where EHA was formed. See 42 U.S.C. § 14503. Section 720-a ("[N]o person serving without compensation as a director… described in section 501 (c)(3) of the United States internal revenue code shall be liable to any person … based solely on his or her conduct in

[5] While EHA is a non-profit corporation formed under the Massachusetts' Not-for-Profit Laws ("MA Non-Profit Laws"), New York's not-for-profit laws are coextensive with those of Massachusetts. Compare M.G.L. c. 231 § 85W with NY N-PCL § 720-a. Massachusetts likewise precludes individual liability for unpaid officers of non-profit corporations. See M.G.L. c. 231 § 85W.

the execution of such office …"); M.G.L. c. 231 § 85W ("… no person who serves without compensation in excess of $500 per year, … as an officer, director or trustee of any nonprofit charitable organization including those corporations qualified under 26 USC section 501(c)(3) shall be liable for any civil damages as a result of any acts or omissions relating solely to the performance of his duties.."). See also Johnson, 26 Misc. 3d 1219(A) (dismissing claims against unpaid board members of a 501(c)(3) non-profit organization under the federal Internal Revenue Services' tax code); Lynch v. Crawford, 483 Mass. 631, 633 (2019) ("Congress intended the [Volunteer Protection Act] to provide immunity from suit for officers in nonprofit organizations who receive no compensation and that § 85W may only expand the scope of that immunity, not diminish it.").

Even if Plaintiff's claims against EHA somehow survive dismissal, his claims against all individual Defendants fail as a matter of law. As an initial matter, "[a]n owner or shareholder of a corporation cannot be held personally liable for the contractual breaches of the corporation." Selinger v. GF Health Prods., Inc., No. 105828/08, 23 Misc. 3d 1113(A) (Sup. Ct. N.Y. Cnty. Mar. 5, 2009), *quoting* Billy v. Consol. Mach. Tool Corp., 51 N.Y.2d 152, 163 (1980) ("T]he avoidance of personal liability for obligations incurred by a business enterprise is one of the fundamental purposes of doing business in the corporate form.").

Furthermore, pursuant to N.Y. Not-for-Profit Corp. Law § 720-a, directors, officers, and trustees who serve without compensation in not-for-profit corporations are protected from liability and immune from lawsuits for conduct in the execution of their office, unless their conduct constitutes gross negligence or intentional harm. See NY N-PCL § 720-a; see also Epstein v. Epstein Teicher Philanthropies, Index No. 654417/2020, 2021 N.Y. Misc. LEXIS 6088, at *20–21 (Sup. Ct. N.Y. Cnty. Nov. 26, 2021); Johnson, 26 Misc. 3d 1219(A) ("Unpaid directors are

immune from suit under the New York Not-For-Profit Corporation Law (N-PCL) § 720-a and CPLR 3211 (a) (11)...”). To the extent Massachusetts’ Not-for-Profit law applies, such law iterates the same immunity for unpaid directors, officers, and trustees (absent gross negligence or fraud) as the New York Not-for-Profit law. See M.G.L. c. 231 § 85W; Lynch, 483 Mass. at 633.

While Plaintiff names every individual member of EHA’s Board of Directors, he fails to provide any factual basis for their inclusion, much less any facts asserting gross negligence or intentional acts to harm Plaintiff or fraud. (Cp. ¶¶ 9-27). Pontarelli v. Shapero, 231 A.D.2d 407, 410–11 (1st Dep’t 1996) (affirming dismissal of claims against unpaid directors under N-PCL § 720-a and CPLR 3211 (a)(11) because plaintiff did not allege gross negligence or intent to cause harm); see also Selinger, 23 Misc. 3d 1113(A) (dismissing breach of contract claims against an individual when plaintiff failed to plead any facts supporting that the individual defendant acted “to commit a fraud or wrongdoing or avoid any of its obligations.”) Plaintiff’s failure to plead gross negligence or intent to cause harm, much less any actual involvement of the individual defendants in any alleged adverse action, warrants dismissal under the N.Y Not-for Profit Law, as well as under Massachusetts and federal law.

CONCLUSION

For the reasons set forth herein, Defendants respectfully request that this Court issue an order dismissing all claims asserted against Defendants in the Complaint, with prejudice, and with costs, and for such other and further relief as the Court deems just and proper.

Dated: April 2, 2026
New York, New York

Respectfully submitted,

JACKSON LEWIS P.C.

By: */s/ Joseph Anci*
Joseph Anci
Corrine Shea
Attorneys for Defendants

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DR. PETER DASZAK, PH.D.,

Plaintiff,

-against-

ECOHEALTH ALLIANCE INC., STEVEN SHAPIRO, INDIVIDUALLY AND AS CHAIRMAN OF THE BOARD OF DIRECTORS OF ECOHEALTH ALLIANCE, INC., AND JULIET AGRANOFF, DR. FREDERICK BAUM III, JOE CURRY, KAREN DENTON, RALPH E. GOMORY, NANCYE GREEN, NANCY GRIFFIN, ROBERT HOGUET, CHARLES HIRSCHLER, GEOFFREY POTTER, ELLEN SHEDLARZ, LISA SILVERSHEIN, JARRET STEPHENS, PAMELA M. THYE, CARLOTA VOLLHARDT, STEVEN WILS, AND DR. LILIAN WU,

Defendants.

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CERTIFICATE OF COMPLIANCE

Pursuant to Section 202.8-b of the Uniform Civil Rules for the Supreme Court and the County Court, I certify that the accompanying *Memorandum of Law*, which was prepared using Times New Roman 12-point typeface, contains **5,251 words**, excluding the parts of the document that are exempted (i.e., captions, tables of contents, tables of authorities, and signature block). This certification is made in reliance on the "word count" of the word-processing system (Microsoft Word) used to prepare the document.

Dated: April 2, 2026
New York, New York

Respectfully submitted,

JACKSON LEWIS P.C.

By: */s/ Joseph Anci*
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